SECRET

THE JOINT CHIEFS OF STAFF
Washington 25, D.C.

26 June 1951

MEMORANDUM FOR THE SECRETARY OF DEFENSE

Subject: Japanese Peace Treaty.

1. This memorandum is in response to the request, contained in your memorandum dated 15 June 1951, for the views and comments of the Joint Chiefs of Staff with respect to the draft Japanese Peace Treaty dated 14 June 1951.

2. Inasmuch as the subject draft Treaty is no longer in outline form but is approaching its final form as a legal document, and because of the structure and the complexities of that document, the Joint Chiefs of Staff believe that they must address their views to the specific language of certain articles therein, in addition to stating or reaffirming certain principles and objectives. In this connection, the Joint Chiefs of Staff would advise that these comments do not include the views of the Commander in Chief, Far East (CINCFE), and have been made without benefit of detailed legal analysis.

3. It must be insured that the Treaty does not come into effect until the United States has ratified it. Accordingly, it is suggested that Article 1 be changed to read:

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"The state of war between Japan and each of the Allied Powers is hereby terminated as from the date on which the present Treaty comes into force between Japan and the Allied Power concerned, as provided for in Article 23".

4. For reasons of national security the United States must retain absolute control of the former Japanese islands enumerated in Article 3, at least until favorable action is taken by the United Nations on the United States request for a strategic trusteeship for the area. It is the understanding of the Joint Chiefs of Staff that this right is guaranteed by Article 3 of the Treaty and by Article 79 of the Charter of the United Nations. However, it should be made certain that no other nation will share or lawfully interfere with United States strategic control of these islands. Furthermore, the Nanpo Shoto Islands should be included in order to be consistent with the directive of the President of 8 September 1950. For these reasons, it is suggested that Article 3 be changed to read as follows:

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Project NLT 74-34
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SECRET

"Japan will concur in any proposal of the United States to place under its trusteeship system, with the United States as the sole administering authority, the Ryukyu Islands south of 29° north latitude, the Nanpo Shoto south of Sofu Gan, the Bonin Islands, including Rosaria Island, the Volcano Islands, Parece Vela and Marcus Island. Pending the making of such a proposal and affirmative action thereon, the United States will have the right to exercise all and any powers of administration, legislation, and jurisdiction over the territory and inhabitants of these islands, including their territorial waters."

5. It should be made certain that there be no basis, either stated or implied, written into the Treaty which might provide for the possible legal claim of Communist China to sovereignty over Formosa, the Pescadores, Paracel, and Spratley Islands and to property in the other islands referred to in Article 3, now under the control of the United States, as well as to accession of real property, such as consulates, buildings, and businesses, formerly held by the Government of China or its nationals in these areas. It would appear that in its present form the second sentence of Article 4 (a) might afford Communist China a valid claim over that territory were it to sign and ratify this Treaty.

6. It is essential that there be no confusion between occupational forces and armed forces which are to remain in Japanese territory under or in accordance with U.S. bilateral agreements with Japan. Accordingly, the first sentence of Article 6 (a) should be changed to read:

"All armed forces of occupation of the Allied Powers shall be withdrawn from Japan as soon as possible after the coming into force of the present Treaty, and in any case not later than 90 days thereafter."

7. It is considered essential to prevent any requirement for Japan to recognize such treaties as those between the USSR and Poland and East Germany, and, specifically, the Sino-Soviet Treaty of February 1950, as well as any other treaties or arrangements for or in connection with the restoration of peace which the USSR and such of it satellites as were belligerents in World War II, including Communist China, might initiate. For this reason, it is proposed that the first sentence of subparagraph (a), Article 8, might be changed to read:

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"Japan will recognize the full force of all treaties now or hereafter concluded by the Allied Powers for terminating the state of war initiated on September 1st, 1939, as well as any other arrangements for or in connection with the restoration of peace made by the Allied Powers."

8. Under no circumstances should the United States sponsor recognition or other benefits to Communist China or to a Communist Government which might subsequently be established in Korea. The language of Article 21, wherein China will be entitled to the benefit of Article 14, would place a requirement upon Japan (under the first sentence of Article 14 (a) 1) to enter into direct negotiations with the Government of Communist China whenever the latter so desires. This, in effect, would force Japan to recognize the Chinese Communist Government inasmuch as the effect of Article 21 is to require a substitution in Article 14 of the word "China" for the words "Allied Powers." It is considered, therefore, that revision of Article 21 is required.

9. The Joint Chiefs of Staff consider it essential that Communist China not be permitted to capitalize upon the opportunity afforded it of signing and ratifying this Treaty, which action would carry with it, both stated and by implication, many tangible and intangible military rights. The Joint Chiefs of Staff would not object if Japan, subsequent to the ratification of the subject Treaty, in the exercise of its rights as a sovereign nation, entered into Treaty obligations with any nation, as is provided for in Article 26. It appears, however, that under Article 25 in its present form Communist China might qualify as an Allied Power and thus be accorded all the rights and benefits of an Allied Power accruing to the signators. The Joint Chiefs of Staff and all of the members of the armed forces of the United States would, for obvious reasons, find it repugnant voluntarily to accord such rights to Communist China and to be so associated with a nation at present conducting major hostilities against the United States. It is considered, therefore, that revision of Article 23 (a) and of Article 25 may be necessary to prevent such an eventuality.

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10. It is considered essential to prevent the coming into force of the Treaty until after the date of its ratification by the United States. The Joint Chiefs of Staff reaffirm their view that at the time the treaty of peace with Japan and the concomitant bilateral treaty are agreed to, the date of their coming into effect must, for cogent military reasons, be determined in the light of the world situation generally, and specifically in the light of the situation in the Far East. Furthermore, the Joint Chiefs of Staff believe that if a treaty is to become effective prior to completion of hostilities in the Far East, an arrangement providing as a minimum requirement for continued United States use of Japan as a base in the event of hostilities in the Far East, whether or not under United Nations aegis, will be essential. Consequently, Article 23 (b) should be carefully studied to insure that the objectives of the Joint Chiefs of Staff are accomplished.

11. The Joint Chiefs of Staff have been informed that they will soon be afforded opportunity to comment on a draft bilateral United States-Japanese treaty of security. The foregoing comments on the basic draft Japanese Treaty of Peace are made without prejudice to their views on the bilateral treaty. In this connection, they would reaffirm strongly their position that United States security interests require that the proposed Peace Treaty with Japan not be permitted to become effective without the coming into effect simultaneously of a bilateral United States-Japanese treaty of security.

For the Joint Chiefs of Staff:

Sgn. General Omar N. Bradley

OMAR N. BRADLEY,
Chairman,
Joint Chiefs of Staff.

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